

Adv. Shalini L Tripathi

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License No: MAH/9337/2024

BY REGISTERED /POST/EMAIL

Date: July 29, 2025

To,

XYZ Distributors LLP

dcsdc

Subject: Legal Notice regarding Dispute

Under the instructions and authority from my client Isha Tripathi, residing at dcs, Mobile: 8767919866, I hereby address you as follows:

That my client and you entered into a transaction/understanding, as described: The transaction in question pertains to a contractual agreement wherein my client, Isha Tripathi, had procured goods from your firm, XYZ Distributors LLP. The terms of the agreement were clear and unambiguous, stipulating the delivery of goods in a specified condition and within a predetermined timeframe.

That my client fulfilled all obligations as agreed under the understanding/transaction. She made the payment in full and on time, as per the terms of the contract, and provided all necessary cooperation to facilitate the smooth execution of the transaction.

That you were obligated to act as per the understanding but failed to do so. Despite the clear terms of the contract, the goods delivered by your firm were not in the agreed condition, and the delivery was also delayed beyond the stipulated timeframe.

That despite repeated follow-ups, no satisfactory resolution was offered. My client made numerous attempts to communicate with your firm, seeking rectification of the breach, but all her efforts were met with indifference and inaction.

That such failure indicates breach of trust. Your firm's failure to adhere to the contractual terms and its subsequent inaction in rectifying the breach has resulted in a significant breach of trust. That my client has suffered losses and inconvenience, as described: The substandard goods and delayed delivery have caused my client considerable financial loss. Additionally, the time and effort expended in pursuing a resolution with your firm have caused her significant inconvenience and distress.

That your conduct constitutes a legal wrong under applicable Indian laws, including but not limited to the Indian Contract Act, 1872. Your firm's actions, or rather the lack thereof, amount to a breach of contract under Section 37 and Section 39 of the Indian Contract Act 1872

to a breach of contract under Section 37 and Section 38 of the Indian Contract Act, 1872.

That my client hereby demands that the dispute be resolved immediately by the replacement of the substandard goods with goods of the agreed quality and the payment of Rs. 1,00,000 as compensation for the financial loss and inconvenience suffered.

That if you fail to act within 7 days from the receipt of this notice, legal proceedings (civil and/or criminal) will be initiated at your risk.

That you shall be liable for all litigation costs, damages, and consequences arising from your failure to comply.

That this legal notice serves as a final opportunity for resolution.

This legal notice is issued to you without prejudice to all other legal rights and remedies available to my client under the law.

Kindly treat this as a final and urgent notice.

For Isha Tripathi

Through his Legal Counsel,

(Advocate Shalini Tripathi)



Adv. Shalini L Tripathi